

24VECV00339 24VECV00339

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-03

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Tentative Ruling

King v. Seamster, Case no. 24VECV00339

Hearing date September 3, 2026

Proposed

Intervenor Geico's Motion for Leave to Intervene

Plaintiff

King sues defendant Seamster for personal injury arising out of a motor vehicle accident. Defendant's insurer, Geico General Insurance Company, moves for leave to intervene. Plaintiff filed opposition 3 days late; the court will consider the arguments on the merits, as Geico filed a substantive reply.

Per

Code Civ. Proc. §387(d)(1): "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if ...: (A) A provision of law confers an unconditional right to intervene; (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties."

Intervention

is permitted when: (1) proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) intervention will not

enlarge the issues; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action. *Siena Court Homeowners Ass'n v. Green Valley Corp.* (2008) 164 Cal.App.4th 1416, 1428. Code Civ. Proc. §387 should be liberally construed in favor of intervention. *Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1200.

Because

a liability insurer agrees to pay any judgment obtained against its insured (Ins. Code §11580(b)(2)), it has the right to intervene where an insured is barred from defending itself. In such cases, intervention is necessary to protect the insurer's own interest because it may be obligated to pay any judgment rendered against its insured. See *Reliance Ins. Co. v. Sup. Ct.* (2000) 84 Cal.App.4th 383, 387.

Geico

is defendant's insurer. Decl. Rabbani, para. 2. Geico has an undisputable direct interest in this litigation, in which defendant refused to cooperate or participate in the defense. Id. at paras. 5, 8-9.

Plaintiff

argues Geico's motion is untimely, as trial is 2 months away. Plaintiff argues Geico should have been aware of defendant's lack of cooperation sooner, as defendant demonstrated an intent not to defend as early as 10/3/25. See Decl. Navarro, para. 2. Plaintiff argues allowing intervention on the eve of trial will cause undue prejudice after plaintiff expended "months attempting to obtain discovery from Defendant." Opp., 8:3-4.

In

determining whether intervention is timely, courts focus on the date the person attempting to intervene should have been aware his interests would no longer be protected adequately by the parties, not the date the person learned of the litigation. Defense counsel Rabbani states prior defense counsel was unable to contact defendant. Decl. Rabbani, para. 3. Current defense counsel associated into this matter in January 2026 and began attempting to contact defendant. Id. at paras. 4-5. Current counsel became certain of defendant's intention not to cooperate when defendant refused to speak to Geico after being located and refused to cooperate with police. Id. at paras. 5, 8.

Geico

does not seek a trial continuance and does not intend to raise any defenses not

previously asserted. Decl. Rabbani, para. 9. The risk of prejudice to plaintiff is minimal. Geico timely moved to intervene after becoming certain defendant would not participate and has a clear, indisputable interest in this litigation. Intervention is appropriate. GRANTED; Geico to file its proposed answer-in-intervention within 2 court days.